
A Microcosm of the Qing's Diplomatic Modernization-Sinibaldo De Mas Y Sanz and Treaty of Chinese Laborers in Cuba

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Abstract

This unique and fascinating diplomat was appointed Spain's first diplomatic representative to the Qing Dynasty in 1843. Unlike the Sino-Spanish relations of the early globalization, through his efforts, diplomacy between the two countries moved from indirect to direct. He not only signed the Treaty of Friendship and Commerce but also personally participated in the early negotiations of the Treaty of Chinese Laborers in Cuba and established the first Spanish embassy in Beijing, his observations and records of Chinese laborers and the coolie trade form the basis of this paper. Before being recalled to Spain, *De Mas* continuously liaised and mediated between overseas Chinese laborers and foreign affairs agencies and diplomats of various countries, actively promoting and realizing the legalization and institutionalization of Chinese labor immigration to Cuba as a reform aimed at saving Spain's overseas colonies. With overseas Chinese laborers and using it as a main thread is a microcosm of the modernization and transformation of Qing Dynasty diplomacy, this profound historical process confirms that the Qing Dynasty's diplomatic concept had gone through the entire process of moving from a tributary relationship to international law, from ignoring the protection of the rights of overseas Chinese to establishing embassies, under the feudal concept of imperial power, traditional diplomacy was abandoned, and a near-modern diplomatic concept with national sovereignty, equality and rights as its core was gradually established.

Key Words: De Mas, Cuba and Spain, overseas Chinese, Qing's diplomacy, international public law

1. Introduction

The history between China and Spain dates to the mid-16th century. Chinese merchant ships navigating the vast waters of the South China Sea, the Philippine Islands, and the island of Taiwan, along with Nan Yang traders and their Chinese goods (Dang, 2025, pp. 145-148), spurred early globalization and world trade. With the circulation of tea, raw silk, porcelain, various spices, and large quantities of silver across Asia, the Americas, and Europe, the Manila galleons became a vital link between East and West, forming an important chapter in world history. With the establishment of China's last feudal dynasty by the Man Chus from the northern tribes, their obsession with regime stability and fear of the sea led to a highly restrictive,

220-year maritime ban, turned China into a self-isolated ancient empire in Asia, the once-thriving maritime merchants (and pirate syndicates) withdrew from the historical stage (Wang, 2016, pp. 153-155), as Chinese goods and ships sharply declined, the Manila galleon trade gradually came to an end.

After China's defeat in the two Opium Wars, Spain—referred to, Ri Er Si Ba Ni Ya in Zhang Xie's *Dong Xi Yang Kao* (Zhang, 2000) — after Britain and France, to establish formal diplomatic relations with the Qing dynasty, relationship between China and Spain shifted from an indirect trade model to a direct diplomatic one. A key figure, Sinibaldo de Mas y Sanz (1809–1868), not only established the first Spanish embassy in Beijing and became the first plenipotentiary ambassador to the Qing, but also, on behalf of the Spanish King, completed the first international the Treaty of Friendship, Trade, and Navigation between China and Spain. Meanwhile, he was also the Spanish diplomat who began addressing the issue of coolie trafficking involving China, Spain, and Cuba. In April 1868, after concluding his tenure and while traveling back to Madrid from Beijing, De Mas completed a manuscript, he expressed to communicate directly with government decision-makers on the issue of Chinese immigration and related matters (Shu, 2021, pp. 136-144). During his time as ambassador to China and his active participation in negotiations, he realized that in negotiations concerning coolies—especially the trade of Chinese laborers in Cuba—and any potential treaties, the signing of agreements was not merely a process of bilateral bargaining but also a stage on which Western powers jostled for influence (Kai, 2013, pp. 79-81), properly disposal of Chinese laborers in Cuba was crucial to diplomatic relationship. After he left, Zong Li Ya Men sent a Chen Lanbin's mission to Havana, to conduct a six-month field investigation, *Abridged Record of the Investigation of Chinese Laborers in Cuba* (China, 1982, pp. 122-127) published, Carlos Antonio then took over and completed the Treaty of Chinese Laborers in Cuba in 1877. Before his return home, Tong Zhi Emperor and Zong Li Ya Men entrusted him with a secret mission: to travel to Portugal and negotiate with the Portuguese government regarding Qing jurisdiction over Macao.

The investigation, negotiations, and signing concerning Chinese laborers in Cuba represent a typical, long-term episode, fully reflected the transformation of Qing diplomacy, it clearly illustrates the Qing's modernization, meant the continuous—and often painful, reluctant, and yet unavoidable—incorporating modern national theory, international public law, and international treaty theory into all stages of Qing deliberations, negotiations, and decision-making.

2. Sinidaldo de Mas y Sanz in Chinese literatures

A multifaceted figure, included professions such as sinologist, painter, calligrapher, writer, ambassador, adventurer, intellectual, and photographer (Spain, pp. 33-57), one of those restless personalities who filled his life with countless adventures and who took the trouble to leave behind many writings about his understanding of the world of his time and how to act effectively within it, was De Más, was born on September 4, 1809, in Barcelona, and from an early age, he showed an extraordinary aptitude for learning languages, his understanding of the mechanisms of languages was such that he even presented a proposal to adapt Castilian Spanish to classical

metrics in 1832 (Shu, 2021, pp. 136-144), Félix Torres Amat, the Bishop of Astorga at the time, was so impressed by his abilities and, using his influence, secured him a position as an informant for the Spanish Kings in various Eastern countries (Spain, pp. 79-102), this was the starting point of his adventures.

Departing in 1834, he spent four years traveling through the Near and Middle East, eventually reaching India, his duties were clear: to write reports on the trade and political situation of the countries he visited, as well as to ascertain the position of France and Great Britain in those same places. Difficulties soon arose. Spain, mired in the chaos of the Carlist Wars, had left his payment for his services unresolved, to make matters worse, he contracted dysentery and ended up emigrating to the Spanish Philippines, where he had to live on alms in a hospital until he recovered, he dedicated all this time to observing the colonial administration of the islands, which led him to publish a report on their state in 1842. This report was highly controversial, because although it demonstrated that he acquired a profound understanding of the Spanish colonial system, it suggested two alternatives for Spain: either strengthen its authority in the islands or seek a dignified way out (Shangsheng, 2007, pp. 87-91), it seemed that his reports were to the liking of the government and in 1844 he was assigned as the Consul General in the Spanish legation in China, Qing dynasty between 1846-1852 and 1864-1868 (Spain, pp. 7-11).

La Chine et les puissances chetiennes is a representative work to describe ancient China in detail, from his travels in China, he gained a broad understanding and the steps he believed were necessary for the proper diplomatic and economic establishment of European countries within its territory. During the 19th century, European minds were deeply ingrained in the ideas of superiority and civilization, contrasting it with the countries they colonized (Shu, 2021, pp. 136-144), De Mas depicted the present and future of China under European tutelage, he lamented the lack of understanding between the two worlds, this misunderstanding, due to mutual ignorance and the cultural gap, caused signed agreements and treaties to fall into oblivion, and the situation frequently erupted into disputes. Meanwhile, he emphasized the crucial need to establish more European embassies in China and Chinese embassies in Europe. The problems for European powers in China would be resolved through joint action, diplomacy, and the threat of war, and he advocated a European coalition that would act militarily if necessary, he was imbued with this aura of European civilization's superiority and justified almost any means to transform China into yet another Western colony (Yuchen, 2023, pp. 84-94).

It's important to note that, he conducted a profound analysis of Chinese society and he highlighted three: firstly, the preponderance of civil society over the military (which amounted to a weak government in the face of aggressive neighbours); secondly, the country's enormous size and poor internal communications (which caused significant delays); and finally, the loss of moral authority of its rulers (mainly due to corruption). Therefore, according to him, it was necessary to divide the country into regions where Europe could gradually exert more stable control and Chinese imperial power could grow. After his life filled with travel and learning, having been a truly remarkable and valuable individual, and he wrote: "the Chinese empire (...)

was a united and compact colossus, which can pose problems for the balance of the world. This colossus sleeps, you will tell me. Yes, but it would awaken”. (Spain, p. 13)

Four contributions between Spain and China are worthwhile.

Firstly, diplomatic system with China and Spain. He was the first Spanish plenipotentiary to China and, in 1864, signed the Treaty of Friendship and Commerce between China and Spain, formally establishing modern official diplomatic and commercial relationship, from then on, Spain fought for fundamental rights in China, such as consular jurisdiction, most-favoured-nation treatment, and the right to trade and reside, opening access to the Far Eastern market, established the first Spanish legation in Beijing in 1865, established consulates in other parts of China, such as Macau, Shang Hai, and Xia Men, etc., this period marked the direct relation's peak.

Secondly, he gained the approval of the Tong Zhi Emperor to participate in matters concerning Macau and Portugal. When the Qing government attempted to reclaim sovereignty over Macau from Portugal through financial compensation, he acted as a mediator, known as the Emily Mission (China, 1999, pp. 91-103), but it remained unfinished due to his return to Madrid and subsequent death. This was not only a specific event at the pinnacle of diplomatic relations between China and Spain, but also a manifestation of the emperor in the Forbidden City's full trust in an outstanding diplomatic envoy from a European country, he enjoyed a high reputation in the Qing diplomatic archives.

Thirdly, He laid the foundations of Spanish Sinology, his two-volume work laid the groundwork for Spanish academic understanding of China, becoming a crucial document for European Far Eastern studies. This two-volume monograph was one of the most influential works in both Asia and Europe since Juan González de Mendoza in the 16th century, and his writings offer invaluable firsthand accounts of late Qing society: the realities of the imperial examination system, the bureaucracy, coastal defence, clan systems, and missionary work from a Western perspective, providing direct historical material for subsequent research on late Qing society (Yuchen, 2023, pp. 84-94).

Last but not the least, about the investigation of the Chinese labourers in Cuba, he was a core in the initial handling of the Sino-Cuban question. After leaving China in 1868, he continued to write extensive reports, analysing the attitudes of various countries and attempting to promote the labourers' regulations.

3. Sinibaldo de Mas y Sanz in the investigation of Chinese laborers in Cuba

After the two Opium Wars between China and Britain, the Treaty of the Five Ports (China, 1982, pp. 67-72) established a pattern of gradual opening for the Qing dynasty. Apart from opium and European goods, British companies began acting as intermediaries, and “the large-scale trafficking of coolie laborers to the Americas for production” (China, 2004, p. 75) had become a social phenomenon. “Most Chinese, under deception, coercion, or even kidnapping, signed contracts, were locked in ship holds, and transported overseas, enduring harsh conditions on the

long voyage, only to be forced into high-intensity labor upon arrival” (China, 1999, p. 81), “... cases of human trafficking appeared in treaty ports such as Xia Men and Guang Zhou” (China, 2004, p. 133) , “... were even more rampant in the British leasehold of Hong Kong and the Portuguese leasehold of Macao” (China, 2004, p. 107). On the surface, Chinese laborers had to sign contracts with recruitment firms or employers for several years, the contract texts claimed that they went overseas voluntarily to work and receive compensation, the intention was to state that “this was completely different from the slave trade” (China, 2004, p. 219). To be realistic, the contracts signed were often deceptive, and the recruitment process was filled with violence. From the perspective of global legal history, the coolie trade worldwide peaked in the 1860s and 1870s, “the largest number of Chinese laborers were transported to Cuba and Peru” (Wenjie, 2025, pp. 10-27), “... in Latin America, Chinese laborers treated like slaves were miserable but often had no one to turn to for help” (Yong, 2011, pp. 121-123), “... in China, people who had lost contact with their relatives overseas were filled with complaints and even launched several large-scale resistance movements against foreigners” (Zeyu, 2023, pp. 213-230). The coolie routes, starting from the coastal cities of Southeast China and with the Latin American country of Peru and the Spanish colony of Cuba as primary destinations, carried the endless grief, anger, and tears of countless Chinese families. This history forced the Qing central government to confront and address the issue together (Yuchen, 2023, pp. 84-94).

In 1865, the Qing’s Zong Li Ya Men began to jointly negotiate recruitment regulations with the British and French ministers to China, these regulations included specific new provisions regarding the recruitment process, preparation for departure, living and working conditions for laborers overseas, and arrangements after the contract expired, on March 5, 1866, the three parties signed the Continued Regulations for Recruiting Laborers (China, 1999, pp. 130-132) in Beijing, other countries, “involved in recruiting laborers in China” were to abide by the provisions of the new regulations and Spain was among them.

De Mas came to Macau in 1844 as the Spanish commercial agent and consul general in China, in 1847, he was appointed as the first plenipotentiary minister responsible for negotiating a trade treaty with the Qing government. In 1864, he signed the Treaty of Friendship, Commerce, and Navigation between China and Spain, which served as the foundational and structural legal guarantee for the labor trade between China, Spain, and Cuba. Before being recalled, De Mas was engaged in liaison and mediation between the Qing central government and various foreign affairs agencies and diplomats regarding the Chinese laborers’ issue, it was a core event in the diplomatic history of China, Spain, and Latin America in the 19th century.

De Mas acknowledged that the scale of Chinese laborers brought into Spanish colony Cuba was far greater than that of the British, primarily due to significant differences in their labor importation systems. In British colonies, indentured laborers were funded by the colonial government and implemented by one or more agents stationed in China, “the total cost of bringing in each immigrant was no less than 200 silver dollars, paid from the colonial government's funds or the royal public funds” (China, 2004, pp. 91-97), this situation did not exist in Cuba. Britain managed and restricted the coolie trade by having laborers sign contracts

directly with the British colonial government. However, in Cuba, the Spanish colonial officials were unable to implement truly effective control over the local powerful figures. As one of the Spanish colonies left over from the Americas, Cuba's large landowners and estate owners possessed wealth and power far exceeding the control of the Spanish central government (Yanxin, 2023, pp. 56-67).

History has indeed proven that the political, economic, and social systems of Britain and Spain had diverged significantly, the management of overseas territories and the utilization of overseas resources to maximize their own interests became key factors in the power struggle between the two sides, naturally drawing the Chinese problem into this competitive and even hostile international relationship (Haijian, 2005, pp. 125-137). The Qing central government at that time, as a major exporter of labor, was unable to protect itself amidst the turbulent international situation, was completely unaware of the actual conditions of overseas laborers and had no way of protecting the rights of Chinese laborers through legal means.

De Mas understood those who went to Cuba to work were not treated as true free citizens and likely did not fully understand the mistreatment suffered by Chinese laborers in Cuba.

“(Chinese officials) should investigate the truth. I told them that several Chinese from Fujian and Guangdong had worked in Cuba, and many more returned each year. It would be easy to understand the true situation there... I also know that a Chinese man from Shanghai had gone to that island (Cuba) as a laborer. I can personally pay to bring him to Beijing and take him to the Zong Li Ya Men. They (Chinese officials) can personally investigate and see if there was any forced conversion of Chinese to Christianity in Cuba. This would demonstrate that the descriptions of the enslavement of Chinese people in Cuba by foreigners are simply exaggerations” (Spain, p. 81).

To effectively meet Cuba's need for increased labor and thus maintain Spain's colonial ambitions, Mas proposed, firstly, employers in the colony should appropriately increase the wages of Chinese laborers; secondly, laborers should have a year to consider whether to renew their contracts if they wished; and thirdly, he suggested allowing thrifty Chinese laborers with savings to return home before their contracts expired. These measures could attract more Chinese to work in Cuba. Mas's proposed amendments “may have been one of the reasons that persuaded the British and French representatives to agree to discuss revisions with Spain” (China, 2004, p. 131) “perhaps it could reduce the possibility of laborers being abused to death to some extent, while increasing wages for coolies might reduce Cuba's interest in bringing in Chinese laborers” (China, 2004, p. 141). The issue indeed attracted widespread attention from countries around the world and the international community, the technological and information revolutions brought about by globalization have made the “Chinese situation”, a focus of global attention. Undeniably, humanitarian concern is an important factor, but the core one is the consideration of each national interests, the problems caused by Chinese laborers were not merely disputes between China and the countries involved in the coolie trade; they also reflected the

contradictions and checks and balances among various powerful nations on a global scale at the time.

On the one hand, De Mas actively analyzed the reasons why Britain, France, and the United States opposed Chinese laborers going abroad to work, revealing that the issue of coolie trade between China and Cuba was no longer simply a dispute between Chinese laborers and Cuban plantation owners, nor merely a conflict between the Qing government and the Cuban and even Spanish governments, but rather a helpless situation caught in the power struggles of various Western countries. On the other hand, Mas tried his best to cope with the increasing pressure from international public opinion on the coolie trade issue, hoping to break through the difficulties and promote the legalization and institutionalization of the movement or transfer of Chinese laborers to Cuba, with the aim of saving Spain's overseas colonies and even changing Spain's fate of becoming a world-class country. In response to the constantly criticized problems of cramped space, harsh environment, and lack of supplies on ships transporting coolies, De Mas listed the amount of living space per worker on deck and in the cabin, the daily food supply, and the ventilation conditions on board (Chen, 2005, pp. 159-165). It was precisely because of his efforts in mediation that Britain and France agreed to include Spain in the negotiating camp and jointly discuss the revision of the treaty on Chinese laborers going abroad with the Qing central government.

After leaving office, De Mas was unable to return to China, and the task entrusted to him by the Tong Zhi Emperor concerning the Emily Mission between Portugal and Macau was not completed as promised. As De Mas stated, subsequent ambassadors were unable to resolve the issues surrounding the regulations governing oversea Chinese laborers, news of the mistreatment of Chinese laborers continued to emerge from Pacific shipping routes and from Cuba and Peru, while the burgeoning media increasingly focused on the tragic plight of Chinese coolies in the Americas, the strong international backlash ultimately initiated the modernization of Qing's diplomacy.

4. The Qing's Diplomacy Modernization- Chinese laborers' rights and overseas embassies

Diplomacy refers to the collective activities of a nation's exchanges with neighboring and overseas countries, including politics, economics, and culture, the modernization of Qing Dynasty diplomacy refers to the forced abandonment by the Qing emperors and bureaucratic system within the Forbidden City of the traditional feudal tributary and tributary system following the rise of the second wave of globalization and the signing of the Treaties of Nanjing, Tianjin, and Beijing, they reluctantly and under pressure accepted the influence of European legal culture, modern international law, and contemporary state theory, continuously adjusting Qing Dynasty diplomatic thought, structure, institutional setup, and personnel arrangements into a new model, this series of historical processes and actions is collectively termed diplomatic modernization. From the mid-to-late Qing Dynasty, this manifested as interconnected and overlapping processes, with the dividing point being the two Opium Wars and their subsequent defeats.

It is an undeniable fact that the wars altered the Qing Dynasty's understanding and perception of the outside world and Western countries, and a series of treaties forced the Qing Dynasty to reluctantly accept the diplomatic conceptions brought about by contemporary international public law.

In the Qing traditional diplomatic model, Zong Fan and the tributary relationship were the two pillars: those Chinese who went abroad to make a living were naturally outside the scope of traditional Qing diplomacy and were considered Liu Min (Luo, 2016, pp. 57-71). In the feudal social structure shaped by Confucianism for over 2000 years, these groups could not be included in the established, solidified social classes, let alone expect protection from the national public power, in Chinese documents, they were referred to as "ocean merchants who lost imperial protection" (Lin, 2018, p. 192). However, the princes and nobles living in the Forbidden City at that time would never have known that it was precisely these "Chinese who lost imperial protection" (Lin, 2018, p. 177) who were quietly changing the diplomatic model in this east Asian nation.

The driving and external force behind the modernization and transformation of Qing Dynasty diplomacy was war, a series of treaties, and the astronomical sums of reparations accumulated over time. Within this vast historical process, researchers always seem to need to find specific actions, events, figures, clauses and institutions to reflect this transformation, therefore, the protection of the rights of Chinese laborers abroad and the Qing Dynasty's embassies overseas become representative. In 1861, the Tong Zhi Emperor established the Zong Li Ya Men, marking a significant step in the modernization of China's modern diplomatic system. From its inception, the protection of the rights and interests of overseas Chinese laborers had been a sensitive issue that has appeared frequently in official documents. The country with the largest number and concentration of Chinese laborers going abroad was the Spanish colony, Cuba, the signing of the Treaty of Friendship and Commerce and the negotiations of the Treaty of Chinese Laborers in Cuba were led by De Mas, with the cooperation of Chen Lanbin, the Qing Dynasty's embassy in Cuba was built, with the embassy replacing the Fan, Zong Li Ya Men was finally changed to the Ministry of Foreign Affairs in 1901.

4.1 The situation before De Mas came to China

From the early 19th century, the global slave trade gradually declined, and China's abundant cheap labor force became a target for Western colonialists, this process continued until the late 19th century, with a rapid increase in the number of Chinese laborers going abroad. Between 1801 and 1850, a total of 320,000 Chinese laborers went overseas (Chunyan, 2018, pp. 94-101); between 1851 and 1900, this number reached 2.03 million (Chunyan, 2018, pp. 94-101), nearly six times the previous number. They were distributed across Southeast Asia, the Americas, Oceania, and Africa, with a particularly large number of Chinese laborers in Cuba. Between 1847 and 1853 and 1874, a total of 143,040 Chinese went to Cuba (China, 2004, p. 174), accounting for about one-tenth of the total number of Chinese laborers going overseas during that period. Most of these laborers were concentrated in the southeastern region of Qing Dynasty China, where "Guang Dong was densely populated and barren, and the people faced hardship in

their livelihoods, leading many to seek a living abroad” (Fairbank, 2020, p. 271). From the 1840s onward, the two Opium Wars, the Tai Ping Rebellion, and fierce infighting between different ethnic groups caused extreme turmoil in the southeastern region. To survive, many left their homes to seek new livelihoods; “the ambitious went abroad to trade” (Huang, 2024, pp. 33-41), meanwhile, bankrupt artisans, small merchants, and farmers, and even some lower-ranking officers, soldiers, and minor officials who had once held a certain social standing, were among those affected (Huang, 2024, pp. 33-41). Therefore, when the Qing Dynasty was forced to open Guang Dong, Xia Men, Fu Zhou, Ning Bo, and Shang Hai as commercial ports, overseas immigration offered a way out for these homeless, struggling, and hopeless individuals. For those who had lost everything due to opium addiction and gambling, going abroad to work seemed like a way to escape their predicament. “However, the Chinese laborers were deceived; upon arrival, they were transformed from contract workers into slaves like African slaves” (Dou, 1960, pp. 65-67).

It must be acknowledged that these Chinese laborers were almost all traveling abroad for the first time, and “the vast majority were unaware of the dangers of circumnavigating the globe” (Chen, 2005, pp. 159-165). The large sailing ships carrying these laborers set sail from Macau, passed through the South China Sea and the Strait of Malacca into the Indian Ocean, then rounded the Cape of Good Hope in Africa, crossed the Atlantic Ocean, and finally arrived in Cuba in the Caribbean Sea. The entire journey was approximately 20,000 kilometers, crossing half the globe, and took an average of four months. According to records from the British Consulate in Xia Men in 1852, the voyage from Xia Men to the West Indies took an average of about 140 days, records from the British Consulate in Shanghai indicate that the voyage from China to the West Indies took approximately 80 days between November and March, and approximately 100 days between April and October; good sailing ships took 100-110 days between November and March, and 130 days between April and October. In most cases, Chinese laborers’ ships sailed from the Cape of Good Hope in Africa to the West Indies, rather than around Cape Horn in South America via the Pacific Ocean, because the waters there were cold and rough. Approximately 17,000 Chinese laborers perished on their voyages to Cuba, besides those who died from disease, torture, or were murdered by their ship owners (Chen, 2005, pp. 159-165), the average mortality rate for indentured laborers transported from Macau was about 15% on board (Dou, 1960, pp. 65-67), in comparison, the mortality rate on 18th-century slave-trading ships was only 2%–5% (Yuchen, 2023, pp. 84-94).

“The types of indentured Chinese laborers represent different stages of slavery, and the phenomenon of indentured Chinese laborers as slaves was formed by the combined effects of economic and political reasons” (Yuchen, 2023, pp. 84-94). Spanish colonists were always accustomed to maximizing the exploitation of slaves’ value, and the interests of the Spanish royal family lay in maintaining a large population that paid taxes. “The Cuban plantation owners set the contracts of Chinese laborers at eight years, which was a carefully designed prison” (Dou, 1960, pp. 65-67), “if Chinese laborers attempted to escape, they would basically be caught by the plantation owners and severely punished or captured by the colonial government and sentenced to hard labor. But even so, the Chinese laborers preferred to go to prison rather than return to the

plantation, because the treatment in prison was better than that on the plantation” (Huang, 2024, pp. 33-41). In 1847, the first group of Chinese laborers arrived in Cuba, and from then on, the emigration of Chinese laborers became an important topic in diplomatic negotiations in the late Qing Dynasty.

Following the two Opium Wars, the Qing Dynasty signed an increasing number of treaties, including regulations and laws governing Chinese laborers’ overseas assignments, regarding recruitment, in March 1866, Prince Gong Xin proposed “drafting regulations for recruitment with Britain and France” (China, 2004, p. 157) , known as the *Twenty-Two Articles*, “required that all countries must handle recruitment matters in treaty ports in accordance with the Twenty-Two Articles” (China, 2004, p. 161). However, Spain’s recruitment practices in China contradicted these regulations, and Zong Li Ya Men demanded that Spain cease operating recruitment agencies, leading to a disagreement between the two sides regarding the Chinese laborers in Cuba.

4.2 The situation after the Treaty of Friendship and Commerce

Following the defeats in the two Opium Wars and the signing of the Treaty of Bei Jing in 1860, the exodus of Chinese laborers seemed to have entered a new phase. The recruitment clauses repeatedly mentioned in the treaty “provided a legal basis for Britain, France, and later other powers to recruit laborers in China, and also made unified management of Chinese immigrants and the early abolition of the coolie trade a possibility” (Chunyan, 2018, pp. 94-101). However, the Qing central government realized that such treaties and their clauses “were not a result of the Qing’s awareness of its responsibility for its mistreated subjects, but rather a consequence of joint pressure from Britain and France” (Huang, 2024, pp. 33-41).

In 1861, Tong Zhi Emperor established the Zong Li Ya Men, “thereafter, all countries without treaty relations with China were prohibited from recruiting laborers in China” (China, 2004, p. 312), this forced those countries without treaty relations with China, especially Cuba, a Spanish territory that relied mainly on private sources for coolies, to continue to depend on the illegal trade from Macau. In the winter of 1861, the Spanish consul in Guang Zhou applied to the Governor-General of Guang Dong, Yan Duanshu, to “re-establish recruitment offices” (China, 2004, p. 322), but this was rejected. Cuba’s demand was increasing, and these two conflicting factors led to “human trafficking in China becoming increasingly rampant” (Chunyan, 2018, pp. 94-101), “these recruitment agents used unforgivable methods to gather enough immigrants they had already promised their agents Of every 100 Chinese recently transported to Havana, I can assure you that 90 were violently seized like wild animals and sent to that extremely remote place; or were entirely lured...” (Chen, 2005, pp. 159-165).

In April 1864, the Spanish plenipotentiary, De Mas, arrived in Tian Jin, who “wanted to conclude a trade treaty with China” (Yuchen, 2023, pp. 84-94), the first Sino-Spanish friendly trade treaty was completed under the De Mas’s leadership, “allowing Chinese to voluntarily go to the various Spanish-controlled countries to make a living” (China, 2004, p. 351) was written into the treaty. The signing of the treaty legalized Cuba’s recruitment of laborers in China,

advancing the process of “legalizing Chinese laborers going abroad”. Utilizing the issue of Chinese laborers going abroad as a key phrase, negotiation as a form, and treaties as a channel for both parties to express their will in handling foreign disputes, this was a concrete manifestation of the Qing’s modernization of diplomacy, it was a relatively successful representative work since the establishment of the Zong Li Ya Men, providing a model for subsequent work. However, during the treaty negotiations, “almost all treaties were not based on the Qing government’s willing consent” (China, 1982, p. 9), and there was a possibility of coercion to varying degrees, it still provided a legal channel for trade disputes arising from Chinese laborers and the coolie trade.

The signing of this treaty granted Spain the legal right to recruit laborers in China, marking the beginning of the golden age of the coolie trade via Macau (China, 1999, pp. 98-110). News of riots by Chinese laborers suffering mistreatment in route to Cuba constantly appeared in the news. In April 1869, the French ship, Tabasco carried Chinese coolies from Macau to Cuba, due to severe mistreatment, the coolies rioted and killed their captain (China, 2004, pp. 311-317). In August 1872, the Spanish ship, Fettucce carried 19,005 coolies from Macau to Havana, three serious riots occurred in route (China, 2004, pp. 337-341). The American ships Wind Chaser carried Chinese laborers from Shan Tou to Havana, due to unbearable mistreatment, the Chinese laborers rioted. To verify the facts of Cuba’s mistreatment, the Zong Li Ya Men proactively wrote to the envoys of Britain, Russia, France, the United States, and the Netherlands inquiring about the situation. They strongly suggested that China should send personnel to investigate, stating, “whether the Chinese laborers have been humiliated can only be ascertained there. However, based on what we have seen and heard, the Chinese laborers in Cuba have indeed been humiliated. Your country should send officials to investigate thoroughly” (China, 2004, p. 353). “China can send personnel to Cuba to investigate the situation of the Chinese laborers. All matters that need to be investigated can be inquired with the consuls of various countries stationed in Cuba, or Spanish officials can be asked to assist” (China, 2004, p. 174). Zong Li Ya Men promptly petitioned and sent Chen Lanbin and his investigation team from the United States to Cuba to investigate the situation of Chinese laborers. In addition, Zong Li Ya Men ordered Robert Hart, the Inspector General of Customs, to select the British Customs Commissioner of Jiang Han Customs, John F. Smith, and the British Customs Commissioner of Tian Jin Customs, Wu Bingwen, to accompany Chen Lanbin so that, “if it is found in the future that Chinese laborers were indeed being mistreated, it would be common knowledge and experience” (Zeyu, 2023, pp. 213-230).

4.3 Chen Lanbin’s visit to Cuba

Chen’s investigation team arrived in Havana in March 1874, inspecting sugarcane plantations, pigsties, sugar factories, and places where Chinese laborers were imprisoned in Havana and various Cuban provinces. Wherever the team went, Chinese laborers came forward to complain of their mistreatment, some submitting petitions, others showing their physical injuries. According to statistics from the Remittances of Historical Materials on Chinese Laborers Going Abroad, edited by the First Historical Archives of China, the team collected a large amount of written material and 1,176 testimonies, and received 85 complaints signed by 19,665 people.

These materials and complaints indicated that 80% of the Chinese laborers were kidnapped or lured; the mortality rate among Chinese laborers during the voyage exceeded 10%; in Havana, Chinese laborers were sold into slavery and subjected to various forms of torture, resulting in serious injuries and deaths, etc.

In May 1874, the investigation team concluded its investigation and left Havana. Chen returned to China and reported his findings, resulting in the complete *Gu Ba Lao Gong Diao Cha Lu*. In October 1874, this report was submitted to Zong Li Ya Men, in early 1875, Zong Li Ya Men, along with supporting documents, sent the report to the ambassadors of the five major powers to prove that Spain was responsible for the mistreatment of Chinese laborers in Cuba. In the subsequent series of negotiations initiated by the ambassadors of the five powers, Zong Li Ya Men took a firm stance, insisting that Spain must abide by the following regulations before allowing the recruitment of laborers in China: 1) All Chinese laborers whose contracts had expired must be repatriated. 2) Compensation must be provided to Chinese laborers who died due to mistreatment. 3) Ship fares must be provided to those whose contracts had expired and who wished to return home; those who wished to stay must have their contracts renewed, be provided with housing, and be allowed freedom of movement. 4) Employers were prohibited from imprisoning or subjecting Chinese laborers to harsh punishments; all illegal cases would be handled by the Chinese consul. 5) Before a Chinese consul took office, foreign consuls should be requested to protect Chinese laborers. 6) the establishment of Chinese guilds was permitted, and laborers were allowed to freely join (China, 2004, pp. 337--365).

Chen's report convinced that it had solid evidence to back it up, giving it a significant advantage in negotiations and garnering sympathy and support from other Western countries, this marked the first time in near-modern Chinese history that Western diplomatic strategies had been used to challenge Western nations. However, it must be acknowledged that the Qing Dynasty, having only recently been drawn into the modern international legal system, was still quite naive about the ever-changing international diplomatic situation.

4.4 The establishment of overseas embassies

The system of permanent consulates is a product of modern European international relations and public law. Each country has the right to send envoys, but whether to exercise this right is determined by each country according to its specific circumstances. This type of embassy, originating from European legal civilization, did not exist in feudal China, with its Confucian ideology and tributary system. No feudal dynasty in China established embassies or sent consuls abroad; therefore, the protection of overseas citizens was virtually nonexistent. The necessity of ambassadors and consuls stationed abroad was first proposed in 1865 by the Englishman *Robert Hart*, "it is of great benefit to China to send ministers to foreign countries. If the ministers residing in the capital request reasonable matters, China should comply; if they request unreasonable matters, China, without ministers residing in their own countries, will find it difficult not to comply" (China, 2004, p. 355). In 1866, *Thomas Wade* also wrote to Zong Li Ya Men, "the only benefit China can gain was from the stationing of ministers in the capitals of various countries. If one would ask what benefit foreign countries will receive, there is none; if

one asks whether China will benefit, there is much” (Shu, 2021, pp. 136-144). In October 1867, Zong Li Ya Men wrote to the governors and viceroys of various provinces, soliciting opinions on the issue of treaty revision, pointing out, “in the past ten years or so, various countries became well aware of China’s strengths and weaknesses, while China was completely ignorant of the situation in foreign countries, which inevitably led to losses, and it was necessary to send envoys to foreign countries” (China, 2004, p. 379).

In repeated negotiations with Spain regarding the recruitment of laborers, the Qing government found itself in a passive position due to the lack of resident envoys. In 1872, when the Qing government demanded that Spain cease recruitment, citing alleged mistreatment of Chinese laborers, the Spanish minister seized upon Chinese weakness of having no resident consuls, proposing: “if China could send consuls to reside in Manila or Havana, any workers who are mistreated could file a complaint with the consul, who would then inform the local officials for proper handling. This minister is also willing to compromise on this matter. If your office can designate where and who is abusing the workers, and there is concrete evidence, this minister will certainly investigate and severely punish them, to demonstrate that this is not what our country desires” (Chunyan, 2018, pp. 94-101). Simultaneously, envoys from various Western countries also suggested that the Qing government establish a consulate in Cuba to effectively curb the mistreatment of Chinese laborers in Cuba. During the negotiations between China and Spain regarding the Treaty of Chinese Laborers in Cuba, the Spanish envoy repeatedly requested that the Qing government send a consul for inspection and protection. Following Chen and his investigation team’s visit to Cuba, Qing officials recognized the crucial value of their officials overseas in protecting the rights of their citizens. Therefore, after the Treaty’s signing, Zong Li Ya Men stated, “if we do not send officials to be stationed there to provide timely assistance to the oppressed Chinese people, not only would we be unable to do so, but other countries would also perceive us as disregarding human life, which would inevitably breed contempt Considering the situations in other countries, must establish consulates and other official positions in each country to protect the Chinese laborers” (Yuchen, 2023, pp. 84-94).

In November 1875, the Qing government appointed Chen as the first envoy to the United States, Spain, and Peru, and simultaneously prepared to send a permanent consul to Cuba. In 1878, the ten-year-long Cuban War of Independence temporarily subsided, in April 1879, Chen and his entourage departed from New York, arriving in Madrid after a 40-day voyage, in May, he met with the King of Spain, presented his credentials, and subsequently established an office in Madrid, becoming the first plenipotentiary envoy of the Qing Dynasty to Spain.

5. Conclusion

“Constant dripping wears away a granite” is an ancient Chinese proverb, meaning that persistent raindrops can penetrate even the hardest granite, the feudal tributary system of foreign policy, that persisted from the Tang and Song dynasties, was like the granite, from the Wan Li Emperor of the Ming Dynasty to the Qian Long Emperor of the Qing Dynasty, they maintained this diplomatic model by isolating the country, lasting 220 years, besides the deliberate resistance to foreign culture, a more important point is that history was clearly demonstrated that significant

changes in Qing's diplomacy could only have come from the powerful impetus of external forces.

When the second globalization inevitably used war to pry open Chinese doors, missionaries, war, treaties, Western civilization, reparations, and the trafficking of Chinese laborers, like relentless raindrops, repeatedly and frequently battering the once rock-solid Qing's diplomacy. After 35 years' Westernization Movement, it could no longer hold on. The tributary system had to be abandoned, and Zong Li Ya Men had to be established out of necessity. During the slow process of transformation (called modernization), the emigration of Chinese laborers, the protection of their rights, and the resulting establishment of embassies and dispatch of ministers became components of China's new diplomacy. The diplomatic transformation that began in 1840 and lasted for 60 years, with overseas Chinese laborers as the key, is not only a historical testament to the collapse of Chinese last feudal dynasty, but also a reflection of the transformation of ancient into modern China and an example of the comprehensive baptism of European political civilization on East Asia, even in the 21st century, this topic remains an unavoidable and shocking historical event for later scholars when they look through historical archives.

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